

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 26-02

NANCY PRIOR

COMPLAINANT,

v.

AMOOV GROUP, FREIGHTLEAD LLC, AIR 7 SEAS
TRANSPORT LOGISTICS, INC.

RESPONDENT.

**RESPONDENT FREIGHTLEAD’S OPPOSITION TO COMPLAINANT’S
MOTION FOR ENTRY OF DEFAULT AND FREIGHTLEAD’S MOTION TO
DISMISS**

Respondent Freightlead LLC (“Respondent” or “Freightlead”), pursuant to 46 CFR §502.69 (f), files this opposition and response to Complainant’s Motion for Entry on Default, and files a Motion to Dismiss pursuant to 46 CFR §502.69.

Introduction and Procedural History on Motion for Entry of Default

On December 22, 2025, Complaint Nancy Prior (“Complaint” or “Ms. Prior”) filed a formal complaint (“the Original Complaint”), against Freightlead and two other Respondents, Amooov Group and Air 7 Seas Transport Logistics, Inc.

On February 6, 2026, Complainant filed an Amended Complaint and Required Status Report. The Amended Complaint stated that Complainant’s shipment was recovered and was now seeking only reparations in the amount of \$21,419.64, for costs, emergency warehouse storage,

moving fees, mitigation expenses, and cargo damage. The Amended Complaint did not include any factual allegations or violations of Shipping Act laws against any Respondent and did not incorporate by reference any allegations of facts or laws in the original complaint against any named Respondents.

On February 4, 2026, Freightlead's Counsel emailed Complainant and requested an extension of time until February 23, 2026. See Exhibit B, consisting of a true incorrect copy of Freightlead's counsel's email dated February 4th, 2026.

Complainant responded by Email on February 10, 2026, and apologized for the tardy reply and, among other things, consented to Freightlead's extension request. However, Complainant in the same email announced that she had filed an amended complaint on February 6, 2026. See Exhibit B, consisting of a true incorrect copy of Complainant's email dated February 10, 2026.

On February 16, 2026, Freightlead's counsel responded to Complainant's February 10, 2026, email and stated, among other things, that Ms. Prior's amended complaint extended Freightlead's and other respondents' response date to March 3, 2026. Complainant omitted this email from its Motion for Entry of Default. See Exhibit B, consisting of a true incorrect copy of Freightlead's counsel's email dated February 16, 2026.

On February 24, 2026, Freightlead's counsel emailed Complainant and requested that she withdraw her motion to default Freightlead as premature. To date, Complainant has not responded to this email and request. See Exhibit B, consisting of a true incorrect copy of Freightlead's counsel's email dated February 24th, 2026.

Freightlead's Opposition to Complainant's Motion for Entry of Default

Freightlead's opposes Complainant's Motion for Entry of Default as Freightlead's response is due on March 3, 2026. Complainant was reminded by Freightlead's counsel that Freightlead's response to the Complaint is due March 3, 2026, because Complainant's Amended Complaint extended the response date to that date. Freightlead's counsel emailed Complainant on February 16, 2026, to note that an extension was not necessary as Complainant's Amended Complaint started a new 25-day response date—now March 3, 2026. Under FMC rules, a response to a complaint is due 25 days after the filing of the complaint. Here, the original due date for Freightlead's response to the complaint was February 8, 2026. However, Complainant's Amended Complaint filed on February 6, 2026, added 25 days for all Respondents to respond to the Amended Complaint by March 3, 2026.

Complainant's Motion for Default is premature because when filed on February 24, 2026, Freightlead's response to the complaint was not yet due.

Based on the above, Freightlead respectfully requests that Complainant's Motion for Entry of Default be denied as premature.

Respondent Freightlead's Motion to Dismiss

Factual Allegations

- Prior to receiving the Complaint, Freightlead's only communication was with Amoov, who requested Freightlead provide destination services for one container consisting of "USED HOUSEHOLD AND PERSONAL EFFECTS" for two shippers, one of which was Complainant. See Exhibit C, Declaration of Ms. Maya Ozge Akdogan in Support of Freightlead's Motion to Dismiss. ("Maya Declaration"). In her Declaration, Ms. Akdogan declares the following:

- In the Master Bill of Lading issued by ocean carrier Hapag Lloyd (“Hapag”) and subject of Ms. Prior’s Complaint, Freightlead shows as a “Consignee and Notify Party.” See Exhibit A.

- The same Hapag bill of lading states in upper case:

OCEAN TRANSPORTATION WILL BE ARRANGED THROUG OMNII SHIPPING SRVICES, INC., A TARIFFED AND BONDED NON-VESSEL-OPERATING COMMON CARRIER LICENSED BY THE U.S. FEDERAL MARITIME COMMISSION LICENSE NUMBER 013252N. IFFS AS AN AUTHORIZED AGENT OF OMNI SHIPPING SERVICES. See Exhibit A.

- Freightlead’s role was solely that of a destination agent for Complainant’s shipment. Freightlead did not hold Ms. Prior’s cargo, nor did Freightlead issue any instructions to any party to place the shipment on hold.
- Freightlead’s role as a destination agent was limited to filing the ISF, arranging U.S. Customs clearance, and arranging for the delivering of Ms. Prior’s and another HHG shipper’s container from the terminal to the warehouse designated by Amoov.
- Freightlead was not the party that determines where the shipment is stored. All instructions regarding the handling and disposition of the cargo were provided to Freightlead by Amoov, the party Ms. Prior selected to arrange for her HHG shipment from origin to destination.
- Freightlead has no business relationship with the facility where the cargo was stored and has no authority over their operations.
- Freightlead’s responsibility concluded upon Freightlead’s assistance in arranging for delivery of the subject container to the assigned warehouse.
- Freightlead was not involved in any way with the ocean transportation portion of Ms. Prior’s shipment; did not issue a bill of lading, did not book Ms. Prior’s ocean shipment;

and did not assume responsibility for Ms. Prior's ocean shipment from origin to destination, and Freightlead only acted as a delivery agent-consignee.

- Although Freightlead is an FMC licensed OTI NVOCC, it did not act in that capacity as defined by the FMC. Freightlead's role in Ms. Prior's shipment was limited to that of a delivery agent--consignee or destination agent, which included filing the ISF, arranging for U.S. Customs clearance, and arranging for the delivering of Ms. Prior's and another HHG shipper's container from the destination terminal to the warehouse designated by Amoov.
- Freightlead's status as a "Consignee-Notify Party" is confirmed by the notation in Hapag's Master Bill of Lading, that the ocean transportation for Ms. Prior's HHG shipment was arranged by OMNI Shipping Services, Inc., a tariffed and bonded NVOCC, licensed by the Federal Maritime Commission, with a licensed number 013252N. Freightlead is not affiliated with or in any way associated with OMNI Shipping Services.

Relevant Law

Although the Commission's Rules of Practice and Procedure ("Rules") do not explicitly provide for motions to dismiss, Rule 12 of the Commission's Rules states that the Federal Rules of Civil Procedure will be followed in instances not covered by the Commission's Rules to the extent that application of the Federal Rules is consistent with sound administrative practice. 46 C.F.R. § 502.12.

"In evaluating whether a complaint before the Commission states a cognizable claim under the Shipping Act, the Commission has relied on Federal Rules of Civil Procedure 12(b)(6) and the federal case-law interpreting it." *Cornell v. Princess Cruise Lines, Ltd.*, FMC Dkt. No. 13-02, 2014 WL 531634 at *6 (FMC Aug. 28, 2014) (citing *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc.*, Dkt. No. 09-01, 2011 WL 7144008 at *11 (FMC Aug. 1, 2011); See also, *MAVL Capital Inc.*

v. Marine Transp. Logistics, Inc., FMC Dkt. No. 16-16, 2020 WL 6445041 at *5 (FMC, Oct. 29, 2020) (stating that the Commission looks to Rule 12(b)(6) when considering dismissals for failure to state a claim). “When, as here, jurisdictional facts are intertwined with facts central to the merits of a claim, the Rule 12(b)(6) standard applies.” *MAVL Capital*, 2 F.M.C.2d at 203 (citing *Kerns v. United States*, 585 F.3d 187, 192–93 (4th Cir. 2009)). “Under Fed. R. Civ. P. 12 (b)(6), the facts alleged are taken as true, and all reasonable inferences are drawn in the complainant’s favor.” *Id.* (citing *Maher Terminals, LLC v. The Port Authority of New York and New Jersey*, Docket No. 12-02, 34 S.R.R. 35, 54 (FMC Dec. 18, 2015)). Also, the Commission ruled in *Mitsui* that:

To survive motions to dismiss for failure to state a claim under Rule 12(b)(6), a complaint must contain sufficient factual matter, accepted as true, to “state a claim to relief that is plausible on its face.” *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 570 (2007). A claim “has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged.” *Ashcroft v. Iqbal*, [556 U.S. 662, 663] (2009). The complaint must be sufficient to “give the defendant fair notice of what the ... claim is and the grounds upon which it rests.” *Bell Atlantic*, 550 U.S. at 555 (quoting *Conley v. Gibson*, 355 U.S. 41, 47 (1957); see also 5 Charles Alan Wright & Arthur R. Miller, *Federal Practice & Procedure Civ.* §1215 (3d ed. 2010) (“[T]he test of a complaint’s sufficiency simply is whether the document’s allegations are detailed and informative enough to enable the defendant to respond.”).

Mitsui, 2011 WL 7144008 at *12.

While a “formulaic recitation of the elements of a cause of action” is not sufficient, “[w]hen there are well-pleaded factual allegations, a court should assume their veracity and then determine whether they plausibly give rise to an entitlement to relief.” *Ashcroft v. Iqbal*, 556 U.S. 662, 678-79 (2009). Meeting the plausibility standard “simply calls for enough fact[s] to raise a reasonable expectation that discovery will reveal evidence” of the alleged violation. *Twombly*, 550 U.S. at 556. At the motion to dismiss stage, the “choice between two plausible inferences that may be drawn from factual allegations is not a choice to be made by the court on a Rule 12(b)(6) motion.” *Anderson News, LLC v. Am. Media, Inc.*, 680 F.3d 162, 185 (2d Cir. 2012). The

Commission explains: “Courts also construe the factual allegations in the complaint in the light most favorable to the plaintiff and must grant the plaintiff the benefit of all inferences that can be derived from the facts as alleged in the complaint.” *Cornell*, 2014 WL 531634 at *6, 33 S.R.R. at 620-621 (citations omitted).

Argument

Freightlead files this motion to dismiss (“MTD”) and argues that Complainant’s Amended Complaint fails to state a claim under Fed. R. Civ. P. 12(b)(6).

As stated above, the Amended Complaint did not include any factual allegations or violations of Shipping Act laws against any Respondent and did not incorporate by reference any allegations of facts or laws in the original complaint against any named Respondents. The Amended Complaint stated that Complainant’s shipment was recovered and was now seeking only reparations in the amount of \$21,419.64, for costs, emergency warehouse storage, moving fees, mitigation expenses, and cargo damage. Even if Complainant had incorporated by reference all allegations in the original complaint, Freightlead’s MTD would still be appropriate for dismissal as it fails to state a claim against Freightlead for violating the Shipping Act as an NVOCC.

Freightlead did not act as an NVOCC—Only as a Consignee-Notify Party-Destination Agent

As stated above, the Amended Complaint did not reference in any way Freightlead’s status under FMC laws and regulations. In the original complaint, Complainant only refers to Freightlead by name and address and FMC Organization number and refers all Respondents as “licensed Ocean Transportation Intermediaries (OTIs).” As will be more fully discussed below, the Motion to Dismiss should be granted because Freightlead only acted as a consignee-notify party-destination agent and did not act as an OTI NVOCC carrier. See Exhibit C, Declaration of Ms. Maya Ozge Akdogan, in support of Motion to Dismiss. Freightlead was only engaged provide to assistance

with filing ISF, arranging U.S. Customs clearance, and arranging for the delivering of Ms. Prior's and another HHG shipper's container from the terminal to the designated warehouse. See Exhibit C, Declaration of Ms. Maya Ozge Akdogan, in support of Motion to Dismiss.

Freightlead Did Not Act as an NVOCC for Complainants Shipment

Although Freightlead is an FMC licensed OTI NVOCC, it did not act in that capacity as defined by the FMC. Freightlead's role in Ms. Prior's shipment was limited to that of a delivery agent--consignee or destination agent, which included filing the ISF, arranging for U.S. Customs clearance, and arranging for the delivering of Ms. Prior's and another HHG shipper's container from the destination terminal to the warehouse designated by Amoov. See Exhibit C, Declaration of Ms. Maya Ozge Akdogan, in support of Motion to Dismiss.

As stated above, Freightlead's status as a "Consignee-Notify Party" is confirmed by the notation in Hapag's Master Bill of Lading, that the ocean transportation for Ms. Prior's HHG shipment was arranged by OMNI Shipping Services, Inc., a tariffed and bonded NVOCC, licensed by the Federal Maritime Commission, with a licensed number 013252N. Freightlead is not affiliated with or in any way associated with OMNI Shipping Services. See Exhibit A, and Exhibit C, Declaration of Ms. Maya Ozge Akdogan, in support of Motion to Dismiss.

The Hapag bill of landing confirms that Freightlead was not acting as the NVOCC for Complainant's shipment, and as noted in Hapag's bill of landing, Omni Shipping Services, Inc., was the NVOCC for Complainant's shipment, who issued their own house bill of lading. See Exhibit A.

Whether a particular entity is acting as an NVOCC has been addressed by the FMC. The Commission has clearly stated that not all activities of regulated entities are subject to the jurisdiction of the Commission.

But the fact that Marine Transport is licensed as a regulated entity does not mean that everything it does is subject to § 41102(c). See *Auction Block Co. v. City of Homer* (Auction Block I), 33 S.R.R. 589, 2014 FMC LEXIS 16 (FMC 2014), *aff'd sub nom. Auction Block Co. v. Fed. Mar. Comm'n* (Auction Block II), 606 Fed. Appx. 347 (9th Cir. 2015); see also *Petchem*, 28 F.M.C at 290 (publishing a tariff rate does not guarantee the Commission's jurisdiction). There must also be a link between the respondents' regulated status and the conduct that allegedly violates the Shipping Act. See Auction Block II, 606 Fed. Appx. at 347-48. That is, the inquiry is whether a respondent was acting as regulated entity with respect to the conduct at issue.

Crocus Investments, LLC v. Marine Transport Logistics, Inc., Docket No. 15-04, 2019 WL 4734299, at *7 (FMC July 16, 2019).

To conclude that an entity operated as an NVOCC for a shipment, the entity must meet the Shipping Act's definition of common carrier; that is, it must hold itself out to the general public to provide transportation by water of cargo between the United States and a foreign country for compensation, assume responsibility for the transportation from the port or point of receipt to the port or point of destination, and use for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a port in the United States and a port in a foreign country. 46 U.S.C. § 40102(7); *Rose Int'l, Inc. v. Overseas Moving Network Int'l, Ltd.*, 29 S.R.R. 119, 162 (FMC 2001).

As explained above, neither the Original nor Amended Complaint refers to Freightlead as an NVOCC. The Complainant only refers to Freightlead by name and address and FMC Organization number and refers all Respondents as "licensed Ocean Transportation Intermediaries (OTIs)." Freightlead maintains that it was only acting as a consignee--delivery agent—destination agent, which responsibilities included filing the ISF, arranging for U.S. Customs clearance, and

arranging for the delivering of Ms. Prior's and another HHG shipper's container from the destination terminal to the warehouse designated by Amoov. See Exhibit B, Declaration of Ms. Maya Ozge Akdogan, in support of Motion to Dismiss.

Freightlead respectfully submits that it did not act as an NVOCC and assumed responsibility for Ms. Prior's shipments from origin to destination. Freightlead further submits that because Freightlead was merely acting as the consignee-delivery agent, it did not assume responsibility for Ms. Prior's shipment as an NVOCC carrier, and therefore, Freightlead does not meet the Shipping Act's definition of NVOCC.

Finally, as stated above, the relevant Hapag bill of landing confirms that Freightlead was not acting as the NVOCC for Complainant's shipment, and as noted in Hapag's bill of lading, Omni Shipping Services, Inc., was the NVOCC for Complainant's shipment, who issued their own house bill of lading. See Exhibit A.

Conclusion

For the foregoing reasons, the Respondent Freightlead respectfully requests that the Complaint in this proceeding be dismissed with prejudice.

Respectfully Submitted



Respectfully submitted,
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Attorneys for Respondent Freightlead LLC

Dated: March 3, 2026

CERTIFICATE OF SERVICE

I certify that on March 3, 2026, the foregoing Respondent's Motion to Dismiss was served via electronic mail on:

Complainant Nancy Prior: nancyrprior@gmail.com

Counsel for Respondent Air 7 Seas Logistics: bec@cargolaw.com

Respondent Amoov Group: connect@amoovgroup.com

/s/ Henry P. Gonzalez

Dated: March 3, 2026

EXHIBIT A

EXHIBIT B